

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2025CUOE040909: EDWIN TORRES YOMAR vs SHERWOOD COUNTRY CLUB, A
CALIFORNIA CORPORATION**

07/08/2026 in Department 44

Motion for Preliminary Approval of Class and Representative Action Settlement

Class Action & PAGA Preliminary Approval Workup Checklist

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line “SUBMISSION ON TENTATIVE”, [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion for Preliminary Approval of Class Action Settlement & Approval of PAGA Settlement (“Motion”)

Tentative Ruling:

The Court GRANTS the Motion as follows:

1. **Timely Service.** The Motion was timely served on all parties, to include service of the Motion and settlement agreement on the LWDA. (Labor Code § 2699(s)(2); Code Civ. Proc. § 1005, 1010.6.)
2. **Conformity with Rules of Court.** The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules, 2.256(b) and 3.1110(f).) Counsel’s compliance

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with these rules greatly aids in the review of papers filed with the Court, and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Plaintiff's memorandum in support of the Motion is 28 pages, exclusive of table of contents and authorities. Notwithstanding this non-compliant filing, the Court will exercise its discretion in this case to consider the papers in support of the Motion. Counsel is admonished to file only conforming papers in the future.

3. **Fairness of Settlement.** The Court has reviewed the motion, all supporting documents filed in support thereof, and finds that Plaintiff has met its burden to show, at this preliminary approval stage of settlement, that the settlement was obtained after an arms-length negotiation, and is fair, adequate and reasonable. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 [adequacy and reasonableness factors include consideration of case strengths, risks, and posture; settlement amount; experience of counsel].) The Court finds that the allocation between Class Claims and PAGA claims are fair. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77.) Further, the Court finds that the scope of the release contained in the settlement agreement are fairly tailored to those that were or could be asserted in the lawsuit based on the facts alleged in the complaint. (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538-39.) The amount allocated to the LWDA and Aggrieved Employees is based on allocations predating notices issued before June 19, 2024. The Court has corrected this error in paragraph 11 below based on the date of the notice in this case, dated March 15, 2025.

4. **Conditional Class Certification.** The Court is satisfied that the proposed class should be certified for purposes of settlement as Plaintiff has met the requirements of Code of Civil Procedure, section 382 [ascertainability, numerosity, well-defined community of interest].)

The Class is defined as: **“all current and former hourly or non exempt employees of Defendant in California at any time during the Class Period. For purposes of Settlement, the “Class Period” is June 24, 2022 to February 4, 2026.”**

Aggrieved Employees for the PAGA period are defined as: **“all current and former hourly or non-exempt employees of Defendant in California at any time during the PAGA Period. For purposes of Settlement, the “PAGA Period” is March 18, 2024 to February 4, 2026.”** There are 62 Aggrieved Employees.

5. **Appointments.** The Court appoints plaintiff **Edwin Torres Yomar** as the class representative, plaintiff's counsel **Moon Law Group, PC** as class counsel, and **Phoenix Class Action Administration Solutions** as the class administrator.

6. **Notice to Class.** The Court is satisfied that the proposed class notice will adequately inform the class about the claims and satisfies the requirements of California Rules of Court, rule 3.766(d). To the extent the Notice will only be provided in the English language, Plaintiff's counsel must justify this is an appropriate means of notifying the class at final approval.

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7. **Attorney Fee Award.** With respect to the request for attorneys fees, the Court has independently scrutinized Plaintiff's request for a percentage fee to be paid from the common fund in the amount of **33.33%**. At this juncture, and reserving the Court's discretion to select the method of fee recovery that best serves the facts at final approval, the Court finds a percentage **fee recovery up to 1/3 of the common fund may be reasonable subject to a 25 percent benchmark.** (*Lafitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 495.)

8. **Incentive Award.** Plaintiffs in this case seek an inventive award of **\$7,500**. Here, the Court finds within its direction that an **award of up to \$3,000** reflects the class representative's actual effort, risk, and contributions to the litigation, and is not disproportionate to plaintiff's expended effort. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1393–1395.)

9. **Attorney Costs.** Costs are requested in an amount not to exceed \$25,000, with \$11,280.63 expended to date. The Court will approve an amount **up to \$15,000** subject to Plaintiff's substantiating such costs at final approval.

10. **Claims Administration Costs.** Costs are requested in an amount not to exceed \$7,750. Subject to Plaintiff's substantiating such costs at final approval, the Court will approve costs up to the requested amount.

11. **Cy Pres.** The Court requires the parties select a cy pres charity recipient in accordance with Code of Civil Procedure section 384 or provide an explanation why the State Controller's office of unclaimed property as the recipient for any unclaimed settlement funds is more appropriate in this case.

12. **Summary of Proposed and Preliminarily Approved Monetary Terms.**

Description	Proposed	Preliminarily Approved
Gross Settlement Amount	\$135,000	\$135,000
Less: Attorney Fees (not to exceed)	\$45,000 (1/3)	\$45,000 (1/3)
Less: Costs (not to exceed) to date \$11,280.63	\$25,000	\$15,000
Less: Administrative Costs (not to exceed)	\$7,750	\$7,750
Less: PAGA Penalties (65% / 35%) ¹	\$10,000	\$10,000
Less: Service Award	\$7,500	\$3,000

¹ Effective for PAGA Notices filed before June 19, 2024, penalties recovered are allocated 75% (LWDA) / 25% (Aggrieved Employees). For PAGA Notices filed on or after June 19, 2024, penalties recovered are allocated 65% (LWDA) / 35% (Aggrieved Employees). (Labor Code § 2699(m).) Here the amount should be allocated 65 / 35 rather than 75 / 25 as Plaintiff proposes since the LWDA notice is dated March 15, 2025.

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Net Settlement Before PAGA add-back	\$37,250	\$54,250
Net Settlement After PAGA add-back (25% of \$100,000)	\$39,750	\$57,750

Subject to any modifications above, the Court GRANTS the motion and will sign the proposed order to be modified in accordance with this order. The proposed order indicates that the proposed notice is attached, but it is not. The revised proposed order must include the attachment.

The Court hereby sets the hearing for final approval on **Wednesday, March 24, 2027, at 1:30 p.m.**

Plaintiffs counsel shall give notice.